

compensable time, whether they were properly paid, and whether Defendant implemented a uniform policy regarding timekeeping and billing its customers in the DBS system.

First, whether there was a uniform policy in place is addressed in other RPDs and is not responsive to this RPD. Disciplinary or corrective action records related to AE's timekeeping would also implicate employees' personnel files and their privacy interests therein. As discussed above, the protective order and redactions would be insufficient in this case to de-identify data because of the employee list already in Plaintiff's possession. At minimum, a *Belair-West* notice would be required, and additionally, Plaintiff would need to establish how this information could be adequately protected given the employees' privacy rights in their personnel files. No further production is ordered.

Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, neither party has been wholly unsuccessful. Both sides have substantial justification for portions of their motion and oppositions, respectively, such that the imposition of sanctions would be unjust. No sanctions will be imposed.

Plaintiff's Motion to Compel Further Responses to Demand for Production is **GRANTED** in part as discussed above with respect to RPDs 25 and 26. No sanctions are imposed. The proposed order will be modified accordingly.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied.

This matter first came on for hearing on July 6, 2026. The minor's father appeared and stated his objection to the name change. The Court instructed the father to file his objection with the Court and continued hearing to August 10, 2026. No objection was filed, however, the father filed a Witness List and five declarations from others. While the father has not filed a written objection, it is clear that the father is objecting to the Petition. The father will need to file a written objection that provides the reasons that the Petition is opposed.

CCP § 1278.5 provides "In any proceeding pursuant to this title in which a petition has been filed to change the name of a minor, and both parents, if living, do not join in consent, the court may deny the petition in whole or in part if it finds that any portion of the proposed name change is not in the best interest of the child." "The controlling consideration in determining whether a change in a child's surname should be ordered against the objection of one of the parents, is the welfare of the child [citations]." *In re Marriage of Schiffman* (1980) 28 Cal.3d 640, 645. Courts are to consider factors including the length of time that the child has used a surname, the effect of a name change on preservation of the father-child relationship, the strength of the mother-child relationship, the identification of the child as a part of a family unit, and any confusion, embarrassment or discomfort the child may experience by bearing a surname different from the rest of their household. *See id.*

The Court intends to set a hearing in this matter. An appearance by the mother and father is necessary to select a hearing date. The mother should be prepared to discuss whether the minor prefers to attend the hearing or submit a written declaration (Judicial Council Form MC-030).

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.

CASE NUMBER: 25CV-0208108

Tentative Ruling on Motion to Compel Production of Documents and Request for Special Sanctions: Plaintiffs seek an Order requiring Defendant, Helix Environmental Planning, Inc., to respond to Request for Production, Set One. Plaintiffs also seek monetary sanctions. Defendant does not oppose the motion to compel responses but does oppose monetary sanctions.

Plaintiffs' Request for Judicial Notice. Plaintiffs' request the Court take judicial notice of the Notice of Entry of Order filed on July 24, 2026, regarding Plaintiffs' prior motion to compel further responses and a transcript from the hearing date of June 8, 2026, regarding the motion to compel further responses. The request is granted pursuant to Evid. Code § 452(d).

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Plaintiffs have provided evidence that Defendant was served by email on May 27, 2026, with Plaintiffs' Request for Production, Set One. No responses were provided within the time required. Additionally, Plaintiffs' counsel sent an email to Defendant requesting responses without objections no later than July 3, 2026. Defendant does not dispute that responses have not been provided. Responses to Plaintiffs' Request for Production, Set One, are required.

Sanctions. Plaintiffs request monetary sanctions pursuant to CCP §§ 2031.300(c) and 2023.030(a). Sanctions are mandatory absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Defendant has failed to show substantial justification for the delay in providing responses to the discovery request.

Plaintiffs request attorney fees for bringing this motion in the amount of \$875.00. The Court finds the hourly rate requested and time spent reasonable, with the exception of the time needed to attend the hearing on this motion. A substantially similar motion was filed regarding a separate defendant for the same hearing date and each motion requests an hour of time to attend the hearing. Two hours to attend the hearing is not reasonable. The Court will reduce this request by one half-hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Helix Environmental Planning, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by